

Court No. - 21

Case :- WRIT - C No. - 8785 of 2023

Petitioner :- Ajay Kumar

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Sri Narendra Kumar Tiwari, learned counsel for the respondent Electricity Department, prays for and is granted time to obtain instructions.

List as fresh on 5.4.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 21.3.2023

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The instant petition has been filed praying for quashing of the notification dated 27.6.2006 and for a further mandamus directing respondent no.2 to decide the statutory representation of the petitioner filed under Clause 8.1 of the U.P. Electricity Supply Code, 2005.

A supplementary affidavit has been filed and alongwith which the order of final assessment 23.3.2023 has been annexed.

Having regard to the admitted factual position that final assessment has already been made, we dispose of the instant petition with liberty to the petitioner to challenge the said assessment by filing statutory appeal under Section 127 of the U.P Electricity Supply Code, 2005, if so advised.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 5.4.2023

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Civil Misc. Correction Application No. 1 of 2023

1. The correction application is partly allowed.

2. In our order dated 05.04.2023 in place of U.P. Electricity Supply Code, 2005, it shall be read as Electricity Act, 2003.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 31.5.2024

Prajapati